SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 273 of 2020 (YEAR: 2020)

CORAM: M.R. SHAH, A.S. BOPANNA

APS Forex Services Pvt. Ltd.
... Appellant(s) / Petitioner(s)
Versus
Shakti International Fashion Linkers
... Respondent(s)

Acts Referred:	Negotiable Instruments Act, 1881
Sections:	Section 138 NI Act, Section 139 NI Act

JUDICIAL HEADNOTE & SUMMARY

Held that once issuance of cheque and signature are admitted, there is a strong statutory presumption that cheque was issued in discharge of a legally enforceable debt.

RATIO DECIDENDI

The Court held that: Held that once issuance of cheque and signature are admitted, there is a strong statutory presumption that cheque was issued in discharge of a legally enforceable debt. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in APS Forex Services Pvt. Ltd. v. Shakti International Fashion Linkers (Criminal Appeal No. 273 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Negotiable Instruments Act, 1881, particularly Section 138 NI Act, Section 139 NI Act. Held that once issuance of cheque and signature are admitted, there is a strong statutory presumption that cheque was issued in discharge of a legally enforceable debt.

OPERATIVE ORDER

ORDER: Decided